

Reserved On : 18.06.2024 vs Rita Kumari on 26 June, 2024

Author: Mamidanna Satya Ratna Sri Ramachandra Rao

Bench: Mamidanna Satya Ratna Sri Ramachandra Rao

2024:HHC:3985 IN THE HIGH COURT OF HIMACHAL PRADESH SHIMLA .

FAO(FC) No. 18 of 2024 Reserved on : 18.06.2024.

D a t e o f d e c i s i o n : 2 6 . 0 6 . 2 0 2 4
..... Anil Kumar
.....Appellant.

Versus Rita Kumari Coram:

r to ...Respondent _____ The
Hon'ble Mr. Justice M.S. Ramachandra Rao, Chief Justice. The Hon'ble Mr. Justice Satyen Vaidya,
Judge.

_____ For the
Appellant : Mr. Romesh Verma, Senior Advocate with Mr. Sumit Sharma, Advocate.

For the Respondent: None.

M.S. Ramachandra Rao, Chief Justice.

This appeal is filed by the appellant-husband challenging the judgment dt. 20.02.2024 passed in HMA Petition no. 263/2018 by the Additional Principal Judge-I Family Court, Una, District Una, HP (Family Court).

2) The appellant had filed the said HMA petition under Section 13-1 (ia) and (ib) of the Hindu Marriage Act for dissolution of marriage between him and respondent-wife.

3) Admittedly the marriage between the parties was solemnized on .

08.10.2009. The parties have a female child born on 17.05.2013.

4) The appellant was employed as a TGT teacher and was admittedly posted at different places in Himachal Pradesh, but he himself admitted that he never took the respondent and his daughter with him and made to reside them with his parents at Village Kotla Kalan.

The case of the appellant in the Petition

5) In the HMA petition, the appellant alleged that the respondent had treated him with cruelty and she had deserted him for a continuous period of not less than two years immediately preceding the petition.

6) He alleged that the respondent was quarrelsome and used to pick up quarrels with him, his parents and other family members. He alleged that she used to raise demands beyond his financial capacity. He claimed that she demanded new clothes and a new bag to attend the marriage of her cousin brother at Bilaspur, but no date was mentioned in the petition.

7) There are references to certain events which happened in April 2010 and June, 2010, shortly after the marriage between the parties took place and also to an incident which happened in February, .

2012, but these events are prior to the birth of the girl child and a reading of the allegations leveled by the appellant against the respondent indicate that they are in the nature of allegations of normal wear and tear in the marriage and do not indicate any cruelty on the part of the respondent towards the appellant.

8) The appellant blamed the respondent for the death of his mother on 03.03.2015. He claimed that in June, 2015, the respondent had bought new gold rings and when he questioned her about the same, she humiliated him by stating that she had got married in a family of paupers, and that the same have been given to her by her parents. He claimed that this shocked and pained him as the respondent was not correct in celebrating after such a short time after his mother's demise.

9) He pleaded that the respondent started pestering the petitioner for money despite the fact that he had arranged for her to take rations etc. from local shopkeepers for which he would make payments himself. He claimed that he would give money for respondent's day to day expenses as per his financial capacity.

10) He claimed that on one occasion, when he was unable to meet her .

demands for money, she started quarreling and threatened his father and even called a Panchayat of his relatives demanding a separate room and maintenance. The appellant claimed that he had agreed to the same, but the arrangement did not last long and later she called Pradhans of four to five Panchayats alongwith her relatives to her parents house. But he did not file any written records of the said proceedings of the said Panchayats, stating that the Panchayat members refused to put it in writing.

11) He alleged that the respondent had made allegations that he was impotent in the presence of his brother-in-law.

12) He alleged that during the marriage of his sister in October, 2016, the respondent created unpleasantness by misbehaving in the presence of relatives by abusing the appellant and his relatives by using foul language and did not participate in the marriage ceremonies.

13) He also alleged that in August, 2017, the respondent had lodged a false complaint against him with the police making certain false allegations against him. According to him, she even alleged that he was having an extra-marital affair. According to him, the police .

found the allegations of the respondent false.

14) He stated that in January, 2018, the respondent picked up a quarrel with him by stating that he should hand over his half salary to her and give money to her parents and when he refused to do so, she got angry. He alleged that the respondent was acting as a parasite on his earnings and since she abused him, he left the house and since 26th January, 2018 he was living separately in a rented accommodation at Taliwal (Una).

15) The appellant also claimed that in August, 2018, on the eve of 'Raksha Bandan', when his sisters visited him at Taliwal, the respondent picked up a fight with them. He claimed that his reputation got destroyed because of the false complaints made by the respondent to the police and he was being shunned by his parents and relatives.

The case of the respondent

16) The respondent refuted the said contentions pointing out that the marriage between the parties took place in 2009 and petition for divorce was filed after about nine years in 2018 with false averments and concocted allegations.

17) She alleged that it was the appellant who used to quarrel with her, .

maltreat her and alleged that he also beat her up on one pretext or the other, and because of the maltreatment by the appellant, she had a miscarriage.

18) She alleged that she was shunted out from her in-laws house in the mid-night of July, 2010 by the appellant and his parents.

19) She alleged that the appellant himself arranged a temporary room on rent basis at village Dangoli, Tehsil Barnock, Tehsil and District Una, where the parties stayed for a short period of three to four months, and in that period also, she was beaten by the appellant.

20) She alleged that she was asked by the appellant to live in Village Lamelhri where the appellant had an ancestral house, but the appellant used to live mostly with his parents in Village Kotla Kalan and not with her.

21) She denied that neither she had demanded a new bag or new clothes for the marriage of her cousin brother nor bought new gold ear rings. She also denied that she celebrated the demise of her mother-in-law.

22) She alleged that the appellant was posted in District Sirmour, but he was not maintaining the respondent and the child and the matter was then reported to the Village Panchayat and the Panchayat had .

resolved the issue on 26.09.2016 with a direction to the father of the appellant to pay Rs. 1,000/- per month to the respondent.

Copies of the proceedings dt. 26.09.2016 and 09.01.2017 of the Panchayat were filed.

23) She alleged that in September, 2017, when she was washing the clothes of the family, she found a letter from the pocket of the appellant's pant and when she inquired about the same from the appellant, he beat up the respondent and then she reported the matter to the police. She claimed that the police came and recorded her statement, and got her medically examined by the Medical Officer, and recorded the same in a Rapat and later on 02.09.2017, the appellant compromised the matter.

24) She contended that the appellant was not maintaining her since 2014 and he used to beat her and compelled her for divorce, and he and his father also threatened to oust her and her child from the matrimonial house forcibly. She therefore filed a complaint under the Protection of Women from Domestic Violence Act, 2005 and that the same is pending before the Judicial Magistrate 1 st Class, Court no. II, Una.

25) She alleged that the appellant wants to take divorce on baseless and .

frivolous grounds and wants to re-marry by leaving the respondent and her child. She denied the other allegations levelled against her by the appellant.

The order of the Family Court

26) The appellant had examined himself as PW-1, his father as PW-2 and his brother-in-law as PW-3 and also marked Ext. PW-1/A to Ext. PA and Marks P-X, P-Y & P-Z to P-ZB.

27) The respondent examined herself as RW-1/A and three other witnesses. She marked Ext. RW-1/B to Ext. RA-1 and also marked Mark-RA, RB, RD, RE and R-4 to R-7.

28) By judgment dt. 20.02.2024, the Family Court dismissed the petition.

29) The Family Court considered the oral and documentary evidence adduced by the parties.

30) It noted the appellant's admission in his cross-examination that he never took the respondent and his daughter to the places where he was posted and that she alongwith her child was made to live with his parents at Village Kotla Kalan.

31) It rejected the plea of the appellant that the respondent had suffered .

a miscarriage in the year 2010 because of her own fault on the basis of evidence of RW-4, the Doctor who stated that the inborn child had a problem which was congenital in nature and the child in the womb had not developed and there was no negligence on the part of the respondent.

32) It also noted his statement that while the respondent wants to reside with him, he does not want to keep her on account of her mistake.

33) It also recorded his admission that Sessions Judge/Family Court had granted maintenance to his daughter at the rate of Rs. 5,000/-

per month which supports the plea of the appellant that the respondent did not use to pay maintenance to her and her daughter.

34) It rejected the plea of the appellant that the respondent used to suspect his character and had made a false allegation of extra-

marital affair with a Computer Receptionist in his Institution as no one from the said Institution had been examined.

35) It also noted that the father of the appellant showed ignorance of material facts during his cross-examination and was ignorant of the fact that the respondent was living in Village Dangoli in a rented house, and that he admitted that the appellant was not paying any .

maintenance to her, though he had undertaken to pay the maintenance at the rate of Rs. 5,000/- per month to the respondent before the Panchayat.

36) It discarded the evidence of PW-3, the appellant's brother-in-law, who had married the younger sister of the appellant in June, 2016.

It noted that he had made general statement regarding the behaviour of the respondent and quoted only one incident of 'Raksha Bandhan' in the year 2018.

37) It also referred to Complaint Ext. RW-2/B filed by the respondent to the police regarding the beatings given to her by the appellant.

38) The Family Court concluded that on consideration of the entire evidence, it was clear that the appellant was avoiding the respondent and made her to reside in her in-laws house, while he was residing at the place of his posting and was not visiting his parents' house to avoid the company of the respondent.

39) It also held that the appellant was not maintaining the appellant and his daughter and though he undertook to pay a maintenance of Rs.

1,000/- per month to the respondent before the Panchayat, he did not pay it or the maintenance awarded by the Court to his daughter.

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The instant FAO (FC)

40) Assailing the same, this appeal is filed.

41) The learned Senior Counsel appearing for the appellant contended that the findings of the Family Court are wrong and that it had not appreciated the evidence on record in the proper perspective and had acted on surmises and conjectures. It is contended that the appellant had specifically pleaded and proved all the allegations of cruelty and desertion; that the behaviour of the respondent was hostile to the appellant and his parents; and the Family Court did not deal in detail with the allegations levelled and did not properly consider the evidence adduced by the parties.

42) It is also contended that the arguments in the case were concluded on 08.09.2023, but the matter was posted for judgment on different dates and as per mandate of Order 20, Rule 1 CPC, the judgment has to be pronounced within 30 days from the date of reserving it and since it was pronounced on 20.02.2024, the judgment of the Family Court is liable to be set aside.

The consideration by the Court .

43) We have noted the contentions of the learned Senior Counsel for appellant.

44) The appellant in his cross-examination had admitted that he was appointed as a TGT teacher and that from January, 2014, he was posted in Sirmour District and had not taken the respondent and his child with him.

45) It is unusual for a married man not to take his wife and child with him to the place he resides and leaves them with his parents in a different village at Kotla Kalan.

46) Admittedly, the appellant had examined only his father and his brother-in-law as witnesses and no third party had been examined by him in support of the allegations levelled against the respondent of cruelty and desertion.

47) In fact most of the allegations contained in the petition are somewhat vague without any specific date being mentioned and without any third party corroboration.

48) The allegations levelled by the appellant against the respondent that she had a miscarriage in the year 2010 on account of her own fault, has been disproved by RW-3 who gave the reasons for the miscarriage caused. It is clear that the appellant had made false .

allegations on that count against the respondent in his pleading.

49) Ext. RW-1/C is a complaint made to the police by the respondent contending that ever since the appellant was posted in Sirmour District, he was demanding the respondent to give divorce and he was beating her and though Panchayats took place and settlement happened in the Panchayats, there is no change in his behaviour. It is also alleged that the appellant is not in the habit of giving any money for expenses to the respondent and that the respondent's parents were maintaining her. She also alleged that every day there are attempts to evict her from her in-laws house and that she wishes to stay with her husband.

50) She has also filed the General Diary Entry Mark R-C (Ext. RW-

2/A) dt. 02.09.2017, in which it was recorded that the respondent had made a complaint of beatings given to her by the appellant on 01.09.2017 and that he had forcibly evicted her from the matrimonial house. The police recorded that they had given a warning to the appellant that in future if he continues the said behavior, he will be prosecuted.

51) The appellant also admitted in his cross-examination that there was .

a compromise effected by the Panchayat as Mark R-A, on which the appellant's father signed and that the appellant also admitted that his father had admitted the fault and promised to pay the respondent Rs.1000/- as maintenance. He also stated that the respondent wishes to stay with him but he does not wish to stay with the respondent because of her faults.

52) Having regard to the evidence adduced by both the parties and the reasoning given by the Family Court, we are of the view that the findings recorded by the Family Court do not warrant any interference by us in exercise of appellate jurisdiction and power conferred on this Court under Section 19 of the Family Court Act.

53) The conduct of the appellant in not allowing the respondent and his daughter to stay with him and not providing maintenance to the respondent for her daily expenses, and probably the beatings to her given by him, appear to be the root cause of the dispute between the parties. It appears that the appellant wants to get a divorce and get rid of the respondent and also of his daughter so that he may re-

marry.

54) Having regard to the circumstances, we do not find any merit in the .

appeal and it is accordingly dismissed.

55) Pending application(s), if any also stands disposed of.

(M.S. Ramachandra Rao) Chief Justice.

June 26, 2024

r

to

(Satyen Vaidya)
Judge.

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